# LEASE CONTRACT

This **Lease Contract** is entered into by the Lessor and the Lessee named hereunder, who agree as follows:

## SECTION I - SUMMARY OF BASIC LEASE PROVISIONS

| **LESSOR** | |
|---|---|
| **Name** | SM PRIME HOLDINGS INC |
| **Address** | MALL OF ASIA ARENA ANNEX BLDG CORAL WAY COR J W DIOKNO BLVD MOA COMPLEX CBP IA PASAY CITY 1300 |
| **Authorized Representative** | LUZ S. KUIZON, Authorized Representative, Or<br>SUZARA Y. TEE, Authorized Representative |

| **LESSEE** | |
|---|---|
| **Name** | FAMILY TIMES FOODS INC |
| **Trade Name** | CAFE MARY GRACE |
| **Address** | 2981 MAHOGANY ST UNITED PARANAQUE SUBD SAN MARTIN DE PORRES PARANAQUE CITY |
| **Authorized Representative** | ADRIAN P. DIMACALI, Director |

**THE LEASED AREA**

| **Development** | **Area Code** | **Floor Area (in sqm)** |
|---|---|---|
| SM CENTER PASIG | 122-123 OS | 60.6400 (approx.) |

**PERMITTED USES**

40% Pasta, Salads, Sandwiches
20% Ensaymadas and Cheeserolls
20% Drinks
10% Lemon Squares
10% Cakes

**LEASE PERIOD**

| **Commencement Date** | **Termination Date** |
|---|---|
| 01 December 2022 | 31 January 2028 |

**RENTAL RATES PER MONTH (exclusive of VAT)**

| | | |
|---|---|---|
| **Fixed Rent / sqm** | P 600.00 | 01 December 2022 - 30 November 2023 |
| | P 630.00 | 01 December 2023 - 30 November 2024 |
| | P 662.50 | 01 December 2024 - 30 November 2025 |
| | P 697.50 | 01 December 2025 - 30 November 2026 |
| | P 732.50 | 01 December 2026 - 31 January 2028 |
| **Percentage Rent** | Five Percent (5.00%) of Gross Sales (Part of Main Store Sales) | |

**OTHER MONTHLY CHARGES (Rates are subject to adjustment by the Lessor from time to time)**

| | | |
|---|---|---|
| **Common Area** | P 150.00 / sqm | Starting upon Turnover of Premises or 30 days before Commencement Date, whichever comes first |
| **Electricity, Water** | Based on actual consumption as reflected in meter reading, if applicable | |
| **Chilled Water** | Based on actual tonnage capacity, if applicable | |

Any reference in the Lease Contract to any of the provisions (or the "Basic Provisions") summarized under Section I hereof, shall be deemed to refer equally to the relevant provisions of the Lease Contract from which said summary derives.

Except as otherwise specified herein and only to the extent consistent herewith, all provisions in the Lease Contract ("First Lease Contract") with the Lessee per Contract No. 11019119 (SM CENTER PASIG) are herewith reproduced and incorporated by reference. This Lease Contract including all provisions incorporated herein by reference, shall subsist and be in effect regardless of the effectivity or duration of the First Lease Contract, it being understood that this Lease Contract is a principal contract in itself.

Lessee hereby consents (i) to the collection, recording, organization, storage, updating, retrieval, consultation, use, consolidation, transfer, sharing, and/or processing of Lessee's personal information and sensitive personal information, including those of Lessee's authorized signatories/representatives, and persons provided by Lessee ("Lessee's Representatives"), by Lessor and its related corporations and affiliates (collectively, "SM Prime Group"), their agents and authorized service providers, in order to review, process, implement or perform acts in relation to the tenant application form, tenant profile form, contract of lease, including its annexes, supplements, amendments, and such other documents submitted by Lessee in connection therewith and to process and/or respond to Lessee's request, query, feedback, or comments and (ii) to the SM Prime Data Privacy Policy found at https://smprime.com/smphi-privacy-policy.

Contract No. 10024836

IN WITNESS WHEREOF, the parties have executed and delivered this Contract of Lease, this _____ day of _____ at _____, Philippines.

**LESSEE**

By:
ADRIAN P. DIMACALI
Director

**LESSOR**

By:
LUZ S. KUIZON
Authorized Representative

JANE MARIE ANTONETTE S. GARCIA

Or

SUZARA Y. TEE
Authorized Representative

**WITNESSES:**

_____

_____
CELYRICA V. CALAHATIAN

**ACKNOWLEDGMENT**

Republic of the Philippines )
_____)

At MAKATI CITY, Philippines, this JUN 05 2023 day of _____, personally appeared the following persons, with the following identification references:

| Name | Competent Proof of Identity | Valid Until |
|---|---|---|
| SM PRIME HOLDINGS INC | TIN003058789 | |
| LUZ S. KUIZON | TIN108728425 | |
| SUZARA Y. TEE | TIN211903363 | |
| FAMILY TIMES FOODS INC | TIN008300100 | |
| ADRIAN P. DIMACALI | UMID011107773048 | |

Known to me and by me known to be the same persons who executed the foregoing Lease Contract and who acknowledged to me that the same constitutes their free and voluntary act and those of the corporations they respectively represent.

WITNESS MY HAND AND SEAL on the date and at the place first above written.

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Series of 2023

**ATTY. REINIER S. QUIAMBAO**
NOTARY PUBLIC
UNTIL DECEMBER 31, 2024
PTR NO. 9563695 / 01.03.23 / MAKATI CITY
IBP NO. 256831 / 01.01.23 / TARLAC CITY
TIN 238-251-699 ROLL NO. 62283
MCLE NO. VII - 0016570 / 04.28.22